

***HEARING ON MOTION IN RE: CONFIRM AND/OR IMPOSE LIEN ON SHARE OF JOHN AND TIMOTHY PAULDING IN PROCEEDS OF SALE (CONTINUED FROM: 12/11/2025 AND 01.08.26)**

FILED BY:

TENTATIVE RULING:

See line 10.

12. 9:00 AM CASE NUMBER: C24-03541

CASE NAME: DANICA AULAUMEA VS. AIRBNB, INC.

***MOTION/PETITION TO COMPEL ARBITRATION AND STAY PROCEEDINGS**

FILED BY: AIRBNB, INC.

TENTATIVE RULING:

Continued to February 19, 2026, 9:00 a.m., on the Court's own motion.

13. 9:00 AM CASE NUMBER: C25-01059

CASE NAME: SHELLEY MYTHEN VS. THE ESTATE OF IDA ALFARO,

HEARING ON DEMURRER TO: COMPLAINT

FILED BY: WILLIS, DONNA

TENTATIVE RULING:

The Court has received the First Amended Complaint filed by plaintiff on February 2, 2026 and defendant's opposition to the First Amended Complaint. Code of Civil Procedure section 472(a) requires that an amended complaint filed after a demurrer must be filed no later than the date the opposition to the demurrer is due. However, absent prejudice to the opposing party, courts are bound to apply a policy of great liberality in permitting amendments to the complaint "at any stage of the proceedings, up to and including trial." (*Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 761.) In light of this well-settled policy of the courts, the Court will allow the untimely First Amended Complaint, which now becomes the operative pleading.

The **demurrer hearing is vacated as moot.**

14. 9:00 AM CASE NUMBER: MS5031

CASE NAME: PETITION OF: PARAQUAT CASES

***HEARING ON MOTION IN RE: FOR ORDER SUBSTITUTING PARTY PURSUANT TO CCP 377.31 AND PERMISSION TO AMEND COMPLAINT**

FILED BY:

TENTATIVE RULING:

Granted. The moving papers establish adequate grounds and there is no opposition.

15. 9:00 AM CASE NUMBER: MSC20-01311

CASE NAME: MICHAEL PRICE VS. STARLIGHT MARINE SERVICES, INC.

***HEARING ON MOTION IN RE: PRELIMINARY APPROVAL OF CLASS ACTION SETTLEMENT**

FILED BY: PRICE, MICHAEL

TENTATIVE RULING:

Plaintiffs Michael Price and Douglas Anderson move for preliminary approval of their class action and PAGA settlement with defendant Starlight Marine Services, Inc.